

SENATE No. 796

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reducing unnecessary delays in patient care.

PETITION OF:

NAME:

DISTRICT/ADDRESS:

Mark C. Montigny

Second Bristol and Plymouth

Christopher M. Markey

9th Bristol

SENATE No. 796

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 796) of Mark C. Montigny and Christopher M. Markey for legislation to reduce unnecessary insurance delays in patient care. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reducing unnecessary delays in patient care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 25 of chapter 176O of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out the words “2 business
3 days” and inserting in place thereof the following:- 24 hours

4 SECTION 2. Said subsection (b) of said section 25 of said chapter 176O is hereby
5 further amended by inserting at the end thereof the following:- Payers and entities acting for
6 payers under contract shall not use appeals processes or other administrative means to delay
7 responding a to completed prior authorization request from a provider in accordance with this
8 subsection. The division shall conduct audits to ensure compliance with this subsection.